

23VECV05342 23VECV05342

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 23VECV05342 Hearing Date: July 28, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Emeka Victor Okwudili

Peter's Motion for Sanctions for Bad Faith Conduct is denied.

Analysis:

On December 4, 2023, Plaintiff Emeka Victor Okwudili

Peter ("Plaintiff"), in propria persona, filed the

Complaint in this action against Defendants Cooperative Regions of

Organic Producer Pools ("Defendant CROPP"), erroneously sued as Cooperative

Regions of Organic Producer Pools d/b/a Organic Valley and CROPP Cooperative, The

Kroger Co. ("Defendant Kroger"), and Ralphs Grocery Company dba Ralphs ("Defendant Ralphs"). The Complaint alleged causes of

action for (1) general

negligence; (2) negligence per se; (3) strict liability; and (4) negligent

hiring, retention, and control of employees. Specifically, Plaintiff alleged

that he became very ill after drinking spoiled milk purchased from Defendants.

The action was originally assigned to the Unlimited Civil Court.

On January 2, 2024, Ralphs filed its Answer to Plaintiff's Complaint.

On January 12, 2024, Defendant CROPP filed a Demurrer to the Complaint and

Motion to Strike Portions of the Complaint. On March 29, 2024, Defendant CROPP

filed a Cross-Complaint against Defendants Kroger and Ralphs, to which

Defendant Ralphs filed its Answer on April 23, 2024. The Court sustained

Defendant CROPP's Demurrer to the Complaint and ordered Plaintiff to file a

First Amended Complaint within 30 days. (Minute Order, 05/07/24.)

On May 30, 2024, the Court granted Defendant Ralphs' Motion to Reclassify the action to a Limited Civil Court. (Minute Order, 05/30/24.) Following Plaintiff's failure to file a First Amended Complaint, the Court granted Defendant CROPP's Motion re: For Judgment of Dismissal. (Minute Order, 08/01/24.) Trial in this action was initially called on September 12, 2024 and continued to October 15, 2024. (Minute Order, 09/12/24.) The Court also set an Order to Show Cause Re: Why Plaintiff Should Not Pay \$500 Sanctions for Failure to Meet and Confer/File Trial Documents. (Ibid.)

After the first Order to Show Cause was discharged, the Court set a second Order to Show Cause Re: Sanctions of \$100.00 for Plaintiff for Failure to Appear for Trial on June 11, 2025. (Minute Order, 06/11/25.) The action came for trial on July 18, 2025 and the jury came back with a defense verdict on July 21, 2025. (Minute Orders, 07/18/25 and 07/21/25.) The Court entered an order of dismissal on August 14, 2025.

Plaintiff filed a Motion for New Trial, which the Court denied on October 1, 2025. (Minute Order, 10/01/25.) Plaintiff then filed a Motion for Reconsideration of Order Denying Motion for New Trial, which the Court denied on October 28, 2025. (Ruling on Motion, 10/28/25.) Plaintiff also filed a Notice of Appeal on October 16, 2025. Plaintiff filed the instant Motion for Sanctions for Bad Faith Conduct on April 22, 2026.

On June 3, 2025, the Court partially granted Defendant Ralphs' Motion to Deem Plaintiff a Vexatious Litigant and entered a pre-filing order against Plaintiff. (Minute Order, 06/03/26.) Plaintiff filed a Notice of Appeal with respect to the June 3, 2026 order on July 8, 2026. Defendant Ralphs' opposition to the instant Motion was filed on July 15, 2026 and Plaintiff's reply was filed the following day.

Discussion

Plaintiff's Motion for Sanctions is brought pursuant to Code of Civil Procedure section 128.5, pursuant to which, the judge may order a party or counsel, or both, "to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "Actions or tactics' include, but are not limited to, the making or opposing of motions or

the filing and service of a complaint, cross-complaint, answer, or other responsive pleading.” (Code Civ. Proc., § 128.5, subd. (b)(1).) “‘Frivolous’ means totally and completely without merit or for the sole purpose of harassing an opposing party.” (Code Civ. Proc., § 128.5, subd. (b)(2).)

The statute also provides a party making or opposing a written motion or the filing and service of a complaint, cross-complaint, answer or other responsive pleading a 21-day safe harbor provision where the pleading or paper can be withdrawn or appropriately corrected. (Code Civ. Proc., § 128.5, subd. (f)(1)(B).) Furthermore, “[i]n determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence.” (Code Civ. Proc., § 128.5, subd. (f)(1).)

Plaintiff argues that Defendant Ralphs should be sanctioned for the following bad faith conduct: exposing Plaintiff’s Social Security Number in publicly filed court records; failing to safeguard Plaintiff’s confidential personal information; obstructing Plaintiff’s access to the sealed record containing the evidence of that exposure; and engaging in discovery abuse and litigation tactics designed to delay, harass, and deprive Plaintiff of a fair trial.

21-Day Safe Harbor Provision

The Motion does not address the Plaintiff’s compliance with the safe-harbor requirement with respect to each of these purported bad faith acts. For example, Plaintiff does not discuss what opportunity he provided Defendant Ralphs to correct the filings that exposed his Social Security Number, or to withdraw its oppositions to Plaintiff’s various motions and applications to gain access to the sealed records. Failure to demonstrate compliance with the safe-harbor provision, or to explain why compliance was not possible, is grounds to deny the sanctions request.

Bad Faith Conduct

The Motion is supported by Plaintiff’s declaration, which repeats the aforementioned broad statements of purported misconduct without providing any details. (Motion, Peter Decl., ¶¶2-7.) Even if the Court were to find these non-specific statements regarding Defendant Ralphs’ conduct sufficient to give it notice of the alleged action or tactic that constitutes

the sanctionable conduct, the Motion does not address the bad-faith standard for a 128.5 sanctions motion.

Bad faith under section 128.5 means conduct that is objectively unreasonable and made with an improper state of mind. The Motion fails to demonstrate that either criterion is met with respect to the conduct identified above.

First, with respect to exposing Plaintiff's Social Security Number in publicly filed court records / failing to safeguard Plaintiff's confidential personal information, this Motion provides no information about the exposure of Plaintiff's Social Security Number, other than to state that it occurred and the record was later sealed. This does not establish conduct that is objectively unreasonable. The Motion provides no basis for the Court to find that Defendant Ralphs included it in public court records with any intent to harm Plaintiff. Nor is there a showing that Defendant Ralphs engaged in a pattern of exposing Plaintiff's private identifying information, from which the Court could infer bad faith. To the extent Plaintiff refers to the disclosure of his social security number in the April 23, 2024 Motion to Reclassify, this Court previously found that the social security number was "inadvertently included", sealed the record, and ordered Defendant Ralphs to refile the motion. (Minute Order, 05/07/2024.) Plaintiff provides no factual basis whatsoever for the Court to find that the disclosure was anything but inadvertent, as the Court stated previously.

Second, Defendant Ralphs' opposition to Plaintiff's Motion for Access to Sealed Records does not support sanctions. This appears to be the basis for the argument that Defendant obstructed Plaintiff's access to the records. As stated above, the 21-day safe harbor provision must be complied with in seeking sanctions for a written opposition, and Plaintiff has not shown compliance. (See Code Civ. Proc., § 128.5 (e)(1)(B).) Sanctions are denied as to this allegation for that reason alone.

But further, the Court finds no basis for a determination that Defendant acted in bad faith. Plaintiff contends that the Opposition was improper because Defendant Ralphs argued that Plaintiff had not served Defendant CROPP with the Motion and that statement may have affected the Court's consideration. (Supp. Decl., ¶¶3-4.) Defendant Ralphs had not opposed the Motion at the time this Motion was filed; Plaintiff may be referring to arguments made in Defendant Ralph's oppositions to ex parte

relief. The Court will not lightly find that arguments made in litigation are made in bad faith. Here, the argument that all parties in a case be served with notice of an ex parte application is not plainly frivolous or calculated to create delay. Further, as the Court noted in ruling on Plaintiff's January 30, 2026 ex parte application, Plaintiff sought relief under Code Civ. Proc., § 2551, which requires service on all parties. (Minute Order, 02/02/2026.) Arguments reiterating that point are not unfairly obstructionist.

Finally, with respect to Defendant Ralphs' purported failure "to properly cooperate in discovery", Plaintiff's supporting declaration offers no details. (Motion, Peter Decl., ¶¶6-7.) Therefore, the Court can make no findings regarding the objective or subjective bad faith of any discovery conduct.

Conclusion

Plaintiff Emeka Victor Okwudili

Peter's Motion for Sanctions for Bad Faith Conduct is denied.

Judicial Assistant to give notice.